

Member ID: _____

Time: _____

Rank: _____



LEGAL OFFICE PROCEDURES (245)

STATE 2023

Multiple Choice:

35 @ 2 points each _____ (70 points)

Production:

Job 1: Final Judgment _____ (100 points)

Job 2: Interrogatories _____ (100 points)

TOTAL POINTS _____ (270 points)

Test Time: 60 minutes

GENERAL GUIDELINES:

Failure to adhere to any of the following rules will result in disqualification:

1. Member must hand in this test booklet and all printouts if any. Failure to do so will result in disqualification.
2. No equipment, supplies, or materials other than those specified for this event are allowed in the testing area. No previous BPA tests and/or sample tests (handwritten, photocopied, or keyed) are allowed in the testing area.
3. Electronic devices will be monitored according to ACT standards.

EXAM GUIDELINES:

1. Ensure this test booklet contains Jobs 1-2.
2. Key all jobs according to the instructions given.
3. Correct any and all formatting, spelling or grammar errors. Use the formatting guide in the *Style & Reference Manual*.
4. Your name or initials should *not* appear on any work you submit. Use your Member ID in any occasion you would normally key your reference initials.
5. In the lower **right** hand corner of ALL work submitted (unless otherwise specified), key your Member ID and job number.
6. If you complete the event before the end of the time allotted, notify the proctor. Time may be considered a factor in determining a winner when there is a tie score.
7. Place your scoring sheet on top of your jobs. Jobs should be placed in numerical order.

PRODUCTION STANDARDS	
0 Errors	100 Points
1 Error	90 Points
2 Errors	70 Points
3 Errors	50 Points
4+ Errors	0 Points

Directions: Select the answer that *best* answers the question or statement.

1. A _____ citation is a legal citation that identifies one case but appears in two different reporters, such as in a state reporter and in a regional reporter.
 - A. conforming
 - B. parallel
 - C. state
 - D. verification
2. Law based on precedents set by earlier court is case law and is often referred to as _____ law.
 - A. civil
 - B. code
 - C. common
 - D. criminal
3. A civil complaint contains _____ that comprise the numbered list of reasons for filing the lawsuit.
 - A. complainants
 - B. submittals
 - C. interrogatories
 - D. allegations
4. A temporary restraining order may be issued by a judge in the event that _____.
 - A. immediate harm may come to the petitioning party
 - B. the petitioning party has filed a lawsuit against another party
 - C. the person in question has not yet been arrested
 - D. the person in question may flee the state
5. The Latin term *sic* is used to signify that _____.
 - A. a lawsuit has already been filed
 - B. a judge has appointed an attorney to one or more parties
 - C. a mistake in a written document is quoted verbatim from the original
 - D. the parties to the action will be represented by a court-appointed attorney
6. The first step in a legal action is usually a demand letter that explains the claimant's injuries and settlement demands, and threatens to file suit if the demands are not met.
 - A. True
 - B. False

7. When filing organization names, which of the following should be *first*?
 - A. The Times-News
 - B. The Bank of New York
 - C. Barron's Meat Co.
 - D. Banner Bank

8. _____ is a section of a legal document that lists all the case citations contained in that document.
 - A. Notary block
 - B. Pinpoint cite
 - C. Table of authorities
 - D. Testimonium clause

9. A section of the document provided for verification that the document was signed by the true and authorized person is a _____.
 - A. Notary block
 - B. Pinpoint cite
 - C. Table of authorities
 - D. Testimonium clause

10. Which of the following is a legal document that requires answers to questions asked during the discovery phase of a lawsuit?
 - A. Judgment
 - B. Motion
 - C. Stipulation
 - D. Interrogatories

11. Which one of the following would *not* be a sub file in a litigation file?
 - A. Pleadings
 - B. Correspondence
 - C. Legal research
 - D. Education

12. When a lawyer agrees to take on a new client without charging attorney fees unless the case has a positive outcome and a judgment or settlement is collected, the billing is referred to as _____ billing.
 - A. contingency
 - B. deferred
 - C. direct
 - D. trust account

13. Which of the following statements about settlements in a civil action is true?
- A. Settlements must be supervised by the court.
 - B. Only defendants can offer settlements.
 - C. One or more of the parties to the lawsuit can settle out, leaving other parties still in the action.
 - D. Settlements become public record.
14. Which of the following is *not* considered a pleading?
- A. Answers to interrogatories
 - B. Deed
 - C. Judgment
 - D. Motion for Continuance
15. When a jury is kept away from the public or from reading or listening to new coverage, the jury is said to be _____.
- A. *inter vivos*
 - B. probated
 - C. segregated
 - D. sequestered
16. All legal authority carries the same weight; there is no hierarchy to consider.
- A. True
 - B. False
17. _____ is not a party to an action, but instead a “friend of the court” position.
- A. *Amicus curiae*
 - B. *Certiorari*
 - C. *Ipso facto*
 - D. *Per stirpes*
18. Once an original document is executed, handwriting or keying an /s/ on the copies to indicate that the original was signed is defined as _____.
- A. conforming
 - B. redlining/tracking
 - C. a watermark
 - D. verification
19. Written rules governing the conduct of an association, such as the National Association of Legal Secretaries, are referred to as _____.
- A. laws
 - B. cannons
 - C. decrees
 - D. fiduciary

20. Allison was asked to record the deed of trust after the clients executed the documents. What will she do to accomplish this?
- A. Place the original in the permanent files of the law office.
 - B. Make a photocopy of the original to put in the law office files and return the original to the clients.
 - C. Make a digital copy that can be stored on a computer.
 - D. File it with the appropriate governmental agency.
21. A last will and testament that is spoken to a person instead of written down is referred to in legal term as what type of will?
- A. invalid
 - B. holographic
 - C. nuncupative
 - D. irrevocable
22. Probate courts issue a formal document called _____ that allows the administrator of the estate to conduct the estate's business.
- A. ancillary papers
 - B. letters testamentary
 - C. *inter vivos* trust
 - D. personal representative affidavit
23. When asking the court to rule on a matter, an attorney usually will need to file a(n) _____.
- A. directed verdict
 - B. answer
 - C. statement
 - D. motion
24. Depending on the state in which they are issued, a *mortgage* and a *deed of trust* can be interchangeable terms.
- A. True
 - B. False
25. _____ is the legal principle that states once a judicial decision is rendered, the matter cannot be litigated again.
- A. *Voir dire*
 - B. Summary judgment
 - C. *Res judicata*
 - D. *Habeas corpus*

26. A motion or order by the court issued even though all parties to the action were not represented is referred to as _____.
A. *amicus curiae*
B. *ex parte*
C. an injunction
D. *pro bono*
27. An agreement to hold title to a property until the property has been paid in full is a(n) _____.
A. oral commitment
B. warranty deed
C. promissory note
D. contract
28. Which of the following is a correct form for an inside address?
A. Sam Rodriguez, Esq.
B. Mr. Sam Rodriguez, Esq.
C. Sam Rodriguez
D. Mr. Rodriguez
29. Ownership of real property by two or more people who hold undivided fractional interests, each party having the right to possess, is referred to as _____.
A. joint tenancy
B. fee simple
C. tenancy in common
D. community property
30. Giovanni's attorney represents the plaintiff in a divorce action. She asks Giovanni to cause the complaint and summons to be properly served on the defendant. This is referred to as _____.
A. giving proper notice
B. showing cause
C. verification
D. service of process
31. The term *venue* refers to _____ jurisdiction.
A. geographical
B. subject matter
C. personal
D. dollar amount

32. The doctrine of contributory negligence is a defense to a claim of negligence.
- A. True
 - B. False
33. Which of the following is the *correct* order of courts, from lowest to highest?
- A. Trial Court, Traffic Court, Appellate Court
 - B. Federal District Court, Federal Circuit Court, U.S. Supreme Court
 - C. Appellate Court, District (or trial) Court, State Supreme Court
 - D. Probate Court, Family Court, Federal District Court
34. A communication with the judge in a case involving only certain parties to the action, but *not* all of the parties is referred to as a(n) _____
- A. *ex parte*
 - B. injunction
 - C. Motion in Limine
 - D. Writ of Certiorari
35. A legal principle that courts will stand by earlier court decisions of the court to make sure they have not been overturned is _____.
- A. Shepardizing
 - B. *prima facie*
 - C. *stare decisis*
 - D. conversion

PRODUCTION

You work in the legal office of Anastasia Linwood, Attorney at Law. She has tasked you with two jobs regarding a Final Judgment for Juan Macias and Interrogatories for Thomas Trucking Company. Please follow the *Styles & Reference Manual*.

Job 1: Final Judgment

Prepare the Final Judgment using the client's information provided. Use words and figures for any dollar amounts and percentages. Correct any misspelling, grammar or other errors.

Client/Plaintiff: Juan Macias

Defendant: Lucas Balderas

Address of Client: 4500 Aluma Drive, Oklahoma City, OK 73121

Details: Lawsuit filed in the Circuit Court, 3rd Judicial District, Harrison County, Oklahoma
Case No. MA-43986

Pleading: This cause having come on for trial on March 21, 2023, in light of the outcome of said trial, it is ordered and adjudged that the Plaintiff Juan Macias, shall recover from the Defendant Lucas Balderas, the total sum of \$54,000.00, for all of which let execution issue.

This judgment shall bear interest at the rate of 5% per annum until paid in full.

Done and ordered in Chambers at Stillwater, Harrison County, Oklahoma, this _____ day of _____, 2023.

County Judge

Job 2: Interrogatories

One of your clients is Thomas Trucking Company of Oklahoma City, Oklahoma. They are being sued in a Lexan County Court, Oklahoma, and your firm is defending the lawsuit. Your attorney instructs you to prepare the following First Set of Interrogatories. Format according to the *Styles & Reference Manual*. Correct any misspellings, capitalization, grammar or any other errors. Leave no blanks except for the signature line and date line in the closing.

Client/Parties: Thomas Trucking Company

Address: 6700 Valley Drive, Oklahoma City, OK 73121

CEO: Thomas Jobman, thomasjobman@gmail.com

Details: Lawsuit filed in the district court, fifth judicial district, Lexan County, Oklahoma

Case No. TA-16-72645

Plaintiffs: Jeffrey Jackson and Joshua Sanchez

Interrogatories:

1. Provide the name, address, phone number, and all other contact information for any persons giving responses to these interrogatories.
2. Provide the date, venue, and related names to any lawsuit ever filed by plaintiffs, each of them or both of them, or on their behalf, within the past twenty (20) years.

Anastasia Linwood will sign the Interrogatories.